

=== CHUNK 1 START ===

Title: POSH Act Overview and Purpose

Keywords: POSH Act, Sexual Harassment of Women at Workplace, prevention, prohibition, redressal, 2013

The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013, commonly known as the POSH Act, is a landmark Indian legislation enacted to protect women from sexual harassment at the workplace. The Act came into force on 9 December 2013. It gives effect to the guidelines laid down by the Supreme Court of India in *Vishaka and Others v. State of Rajasthan* (1997), which recognized sexual harassment at the workplace as a violation of fundamental rights under Articles 14, 15, and 21 of the Constitution of India. The primary objectives of the Act are: (1) prevention of sexual harassment of women at the workplace; (2) prohibition of all forms of sexual harassment; (3) redressal of complaints of sexual harassment through a time-bound mechanism. The Act applies to all workplaces — organized and unorganized sectors — across India, including government bodies, private companies, NGOs, hospitals, educational institutions, sports institutions, and domestic workers' settings.

=== CHUNK 1 END ===

=== CHUNK 2 START ===

Title: Definition of Sexual Harassment under POSH Act

Keywords: definition, sexual harassment, unwelcome acts, physical contact, advances, demand, favours, sexually coloured remarks

Under Section 2(n) of the POSH Act, 'sexual harassment' includes any one or more of the following unwelcome acts or behaviour (whether directly or by implication): (a) physical contact and advances; (b) a demand or request for sexual favours; (c) making sexually coloured remarks; (d) showing pornography; (e) any other unwelcome physical, verbal or non-verbal conduct of sexual nature. Additionally, Section 3(2) specifies that the following circumstances, if they occur or are present in relation to or connected with any act or behaviour of sexual harassment, may amount to sexual harassment: (i) implied or explicit promise of preferential treatment in employment; (ii) implied or explicit threat of detrimental treatment in employment; (iii) implied or explicit threat about present or future employment status; (iv) interference with work or creating an intimidating, offensive or hostile work environment; (v) humiliating treatment likely to affect the lady employee's health or safety. Any single incident meeting the above criteria constitutes sexual harassment under the Act.

=== CHUNK 2 END ===

=== CHUNK 3 START ===

Title: Definition of Workplace and Aggrieved Woman

Keywords: workplace definition, aggrieved woman, employee, domestic worker, extended workplace, unorganized sector

Under Section 2(o) of the POSH Act, 'workplace' includes: (i) any department, organisation, undertaking, establishment, enterprise, institution, office, branch or unit established, owned, controlled or wholly or substantially financed by funds provided by the government; (ii) any private sector organisation or a private venture, undertaking, enterprise, institution, establishment, society, trust, non-governmental organisation, unit or service provider carrying on commercial, professional, vocational, educational, entertainment, industrial, health services or financial activities including production, supply, sale, distribution or service; (iii) hospitals or nursing homes; (iv) any sports institute, stadium, sports complex or competition or games venue; (v) any place visited by the employee arising out of or during the course of employment, including transportation provided by the employer; (vi) a dwelling place or a house. Under Section 2(a), 'aggrieved woman' means in relation to a workplace, a woman of any age whether employed or not, who alleges to have been subjected to any act of sexual harassment by the respondent. The definition specifically includes women employed in the unorganized sector, domestic workers, and contract/temporary workers.

=== CHUNK 3 END ===

=== CHUNK 4 START ===

Title: Internal Complaints Committee (ICC) — Constitution

Keywords: Internal Complaints Committee, ICC, constitution, Presiding Officer, members, employer, organisation with 10 or more employees

Section 4 of the POSH Act mandates that every employer of a workplace employing 10 or more employees shall constitute an Internal Complaints Committee (ICC) at each office or branch. The ICC shall consist of: (a) a Presiding Officer who shall be a woman employed at a senior level at the workplace from amongst the employees. If a senior-level woman employee is not available, the Presiding Officer shall be nominated from other offices or administrative units of the workplace. If such a person is not available, the employer shall request the District Officer to nominate a Presiding Officer from any other workplace; (b) not less than two members from amongst the employees preferably committed to the cause of women or who have had experience in social work or have legal knowledge; (c) one member from amongst non-governmental organisations or associations committed to the cause of women or a person familiar with issues relating to sexual harassment. At least one-half of the total members of the ICC shall be women. The Presiding Officer and every member of the ICC shall hold office for a period not exceeding three years from the date of their nomination. The employer shall pay to the Presiding Officer and members such fees or allowances as may be prescribed. Any member of the ICC can be removed from the ICC if they have been convicted of an offence, found guilty of any disciplinary proceeding, or abused their position.

=== CHUNK 4 END ===

=== CHUNK 5 START ===

Title: Local Complaints Committee (LCC) — Constitution and Jurisdiction

Keywords: Local Complaints Committee, LCC, District Officer, unorganized sector, less than 10 employees, domestic worker

Section 6 of the POSH Act requires the District Officer (appointed by the appropriate government) to constitute a Local Complaints Committee (LCC) in each district to receive complaints of sexual harassment from establishments where the ICC has not been constituted due to having fewer than 10 workers, or if the complaint is against the employer himself, or if the aggrieved woman is a domestic worker. The LCC shall consist of: (a) a Chairperson to be nominated from amongst the eminent women in the field of social work committed to the cause of women; (b) one member to be nominated from amongst the women working in block, taluka, tehsil, ward or municipality in the district; (c) two members, of whom at least one shall be a woman, to be nominated from NGOs or associations committed to the cause of women or a person familiar with issues relating to sexual harassment — preferably one of these members shall be from the Scheduled Castes or Scheduled Tribes or the minority community. The Chairperson and the members of the LCC shall hold office for a period not exceeding three years. The jurisdiction of the LCC extends to the entire district. The LCC has the same powers as the ICC for the purposes of holding an inquiry.

=== CHUNK 5 END ===

=== CHUNK 6 START ===

Title: Filing a Complaint — Process and Timeline

Keywords: complaint, filing, written complaint, six weeks, three months, incapacity, conciliation, aggrieved woman

Section 9 of the POSH Act governs the manner of filing a complaint. The aggrieved woman is required to make a written complaint of sexual harassment to the ICC or LCC within three months from the date of the incident. In case of a series of incidents, the complaint shall be filed within three months from the date of the last incident. Where the aggrieved woman is unable to make a complaint on account of her physical or mental incapacity or death or otherwise, her legal heir or any other prescribed person may make the complaint. If the aggrieved woman is unable to write, the Presiding Officer or any member of the ICC or LCC shall render all reasonable assistance to the woman to make the complaint in writing. The ICC or LCC, for reasons to be recorded in writing, may extend the time limit for filing the complaint by another three months if it is satisfied that circumstances existed which prevented the woman from filing the complaint within the original period. The complaint shall be made in writing to the ICC or LCC. The ICC or LCC shall provide copies of the complaint to the respondent within seven working days of receiving the complaint.

=== CHUNK 6 END ===

=== CHUNK 7 START ===

Title: Conciliation Process

Keywords: conciliation, settlement, Section 10, ICC, LCC, no monetary settlement, before inquiry

Section 10 of the POSH Act provides for an optional conciliation mechanism before a formal inquiry is initiated. The ICC or LCC, as the case may be, at the request of the aggrieved woman, may take steps to settle the matter between her and the respondent through conciliation. Important restrictions under Section 10: (a) No monetary settlement shall be made as the basis of conciliation. The Act explicitly prohibits cash-based resolution of sexual harassment complaints at the conciliation stage. (b) Conciliation is initiated only at the request of the aggrieved woman — it cannot be imposed on her. If conciliation is agreed to and a settlement is arrived at, the ICC or LCC shall record the settlement and provide copies to both parties. No further inquiry shall be conducted once the matter is settled through conciliation. If the aggrieved woman informs the ICC or LCC that any term or condition of the settlement has not been complied with by the respondent, the ICC or LCC shall proceed to make an inquiry into the complaint as if no settlement was arrived at, or forward the complaint to the police. Conciliation proceedings are confidential and no document, communication or evidence produced shall be used in any subsequent inquiry.

=== CHUNK 7 END ===

=== CHUNK 8 START ===

Title: Inquiry Process — Procedure and Timeline

Keywords: inquiry, Section 11, natural justice, sixty days, opportunity of hearing, evidence, witnesses, inquiry report

Section 11 of the POSH Act sets out the procedure for conducting an inquiry into complaints of sexual harassment. Where the aggrieved woman does not opt for conciliation or the conciliation fails, the ICC or LCC shall proceed to make an inquiry. Key procedural requirements: (1) The inquiry shall be completed within a period of sixty days. (2) Principles of natural justice must be followed — both the aggrieved woman and the respondent shall be given an opportunity to be heard. (3) The respondent shall receive a copy of the complaint and shall submit a written reply with supporting documents and the names and addresses of witnesses within ten working days from receipt of the complaint. (4) The ICC or LCC shall have the same powers as a civil court under the Code of Civil Procedure, 1908 in respect of: (a) summoning and enforcing the attendance of any person and examining them on oath; (b) requiring the discovery and production of documents; (c) any other matter which may be prescribed. (5) Parties shall not be allowed to bring any legal practitioner to represent them before the ICC or LCC. (6) At the request of both parties, the inquiry may be conducted at a neutral venue. (7) The inquiry proceedings shall be kept confidential. The ICC or LCC shall have regard to the evidence adduced and submit the inquiry report within ten days from the completion of the inquiry to the employer and the District Officer, as the case may be.

=== CHUNK 8 END ===

=== CHUNK 9 START ===

Title: Interim Relief During Inquiry

Keywords: interim relief, Section 12, transfer, leave, protection, restraint, pending inquiry

Section 12 of the POSH Act empowers the ICC or LCC to recommend interim measures during the pendency of an inquiry. During the pendency of an inquiry, on a written request made by the aggrieved woman, the ICC or LCC may recommend to the employer to: (a) transfer the aggrieved woman or the respondent to any other workplace; (b) grant leave to the aggrieved woman up to a period of three months. This leave shall be in addition to the leave she would otherwise be entitled to; (c) grant such other relief to the aggrieved woman as may be prescribed. The employer shall implement the recommendations of the ICC or LCC and send a report of such implementation to it. This provision is critical because it ensures that the aggrieved woman does not have to continue working alongside the respondent during the inquiry, and protects her from further harassment or intimidation. The interim relief does not prejudice the final outcome of the inquiry.

=== CHUNK 9 END ===

=== CHUNK 10 START ===

Title: Action on Inquiry Report — Penalties and Recommendations

Keywords: inquiry report, Section 13, action on findings, punishment, misconduct, deduction from salary, termination, service rules

Section 13 of the POSH Act governs the action to be taken upon receipt of the inquiry report. If the ICC or LCC concludes that the allegation against the respondent has been proved, it shall recommend to the employer or the District Officer, as the case may be: (a) to take action for sexual harassment as a misconduct in accordance with the provisions of the service rules applicable to the respondent, or where no such service rules exist, in such manner as may be prescribed; (b) to deduct from the salary or wages of the respondent such sum as it may consider appropriate to be paid to the aggrieved woman or to her legal heirs. The sum to be deducted shall be determined based on: (i) the mental trauma, pain, suffering and emotional distress caused to the aggrieved woman; (ii) the loss in career opportunity due to the incident of sexual harassment; (iii) medical expenses incurred by the victim for physical or psychiatric treatment; (iv) the income and financial status of the respondent; (v) feasibility of such payment in lump sum or in instalments. If the respondent fails to pay the sum deducted, the ICC or LCC may forward the order for recovery of the sum as an arrear of land revenue. Where the employer is unable to make deductions from the salary due to the respondent being no longer in service, the employer shall recover the sum as prescribed. The employer shall act on the recommendations within sixty days of receipt of the inquiry report.

=== CHUNK 10 END ===

=== CHUNK 11 START ===

Title: Punishment for False or Malicious Complaints

Keywords: false complaint, malicious complaint, Section 14, punishment, not proved, action against complainant

Section 14 of the POSH Act provides for action in case of false or malicious complaints. Where the ICC or LCC arrives at a conclusion that the allegation against the respondent is false or malicious, or the aggrieved woman or any other person making the complaint has produced any forged or misleading document, it may recommend to the employer or District Officer to take action against the woman or the person who made the complaint, in accordance with the service rules. Important distinction under the Act: The mere inability to substantiate a complaint or provide adequate proof does not attract penal action against the complainant. A complaint will be treated as false or malicious only if there is clear and convincing evidence of deliberate falsehood, forgery, or malicious intent. The protection against false complaints is meant to deter abuse of the grievance mechanism, but it should not be used to deter genuine complainants from coming forward. The ICC or LCC must exercise this power with caution and must not penalise a complainant simply because the inquiry finds the complaint not proved. Any action taken against a complainant under this section must be proportionate and in accordance with the applicable service rules.

=== CHUNK 11 END ===

=== CHUNK 12 START ===

Title: Duties and Obligations of the Employer

Keywords: employer duties, Section 19, awareness, sensitisation, training, Internal Complaints Committee, display, annual report

Section 19 of the POSH Act enumerates the duties and obligations of every employer. Every employer shall: (a) provide a safe working environment at the workplace, including safety from all persons coming into contact at the workplace; (b) display at any conspicuous place in the workplace the penal consequences of sexual harassment and the order constituting the ICC; (c) organise workshops and awareness programmes at regular intervals for sensitising the employees with the provisions of the Act and orientation programmes for the members of the ICC; (d) provide necessary facilities to the ICC or LCC for dealing with the complaint and conducting an inquiry; (e) assist in securing the attendance of the respondent and witnesses before the ICC or LCC; (f) make available such information to the ICC or LCC as it may require having regard to the complaint made under sub-section (1) of Section 9; (g) cause to initiate action under the IPC (Indian Penal Code) or any other law for the time being in force against the perpetrator if the aggrieved woman so desires, or where the ICC or LCC determines that the circumstances of the case warrant such action; (h) treat sexual harassment as a misconduct under the service rules and initiate action for such misconduct; (i) monitor the timely submission of reports by the ICC. Additionally, employers must file an annual report with the District Officer containing details of the number of complaints received, disposed of, and pending for more than 90 days.

=== CHUNK 12 END ===

=== CHUNK 13 START ===

Title: Appeal against Findings of ICC or LCC

Keywords: appeal, Section 18, court, tribunal, sixty days, aggrieved, recommendations not complied

Section 18 of the POSH Act provides a right to appeal to any person aggrieved by the recommendations made or non-implementation of the recommendations by the ICC or LCC. Any person aggrieved by the findings or recommendations made under Section 13 (action on inquiry report), or non-implementation of such recommendations under Section 13 or 14, may prefer an appeal to the appropriate court or tribunal in accordance with the service rules applicable to the said person. Where no service rules exist, the appeal shall lie to the court or tribunal as specified. The appeal must be filed within sixty days of the recommendations. Important notes: (1) The right to appeal is available to both the aggrieved woman and the respondent. (2) The court or tribunal hearing the appeal shall have the power to confirm, modify or set aside the recommendations or orders appealed against. (3) The filing of an appeal shall not affect any action already taken or recommended unless the court or tribunal directs otherwise. (4) Where the employer fails to implement the recommendations, the aggrieved woman can also approach the court or tribunal for enforcement.

=== CHUNK 13 END ===

=== CHUNK 14 START ===

Title: Penalty for Non-Compliance by Employer

Keywords: penalty, employer non-compliance, Section 26, fine, cancellation of registration, licence, repeat offence

Section 26 of the POSH Act prescribes penalties for employers who fail to comply with the provisions of the Act. Any employer who fails to: (a) constitute an ICC; (b) take action on the recommendations of the ICC or LCC; (c) file the annual report; or (d) comply with any other obligation under the Act — shall be punishable with a fine which may extend to Rs. 50,000. In case of a second or subsequent conviction, the fine shall be double the penalty that can be imposed for the first offence. If the employer is a company, the government authority may also cancel or withdraw the registration, licence or approval granted to the employer for carrying on their business or activity. The appropriate government is empowered to impose higher penalties if the employer repeatedly violates the provisions. The penalties under this section are in addition to any other penalty to which the employer may be liable under any other law for the time being in force. Non-constitution of the ICC is a continuing offence and each day of default constitutes a separate offence.

=== CHUNK 14 END ===

=== CHUNK 15 START ===

Title: Confidentiality Obligations under POSH Act

Keywords: confidentiality, Section 16, identity, respondent, aggrieved woman, witnesses, disclosure, penalty

Section 16 of the POSH Act imposes strict confidentiality obligations regarding the contents of the complaint, inquiry proceedings, recommendations, and actions taken. The ICC or LCC and the employer shall not publish, communicate, or make known to the public, press, or media in any manner the contents of the complaint made under the Act. Specifically: (a) the identity of the aggrieved woman; (b) the identity of the respondent; (c) the identity of the witnesses; (d) any information relating to conciliation and inquiry proceedings; (e) recommendations of the ICC, LCC or employer; (f) action taken by the employer under the Act — shall not be disclosed. Section 17 provides that any person who contravenes the confidentiality provisions shall be liable to a penalty as prescribed in the service rules or, where no service rules exist, shall be liable to a fine of Rs. 5,000. The confidentiality obligation does not prevent the disclosure of information for the purpose of taking action under the Act. Victims who wish to speak publicly about their experiences may do so but the ICC, LCC, and employer remain bound by confidentiality even if the aggrieved woman consents to disclosure.

=== CHUNK 15 END ===

=== CHUNK 16 START ===

Title: Protection against Retaliation and Victimisation

Keywords: retaliation, victimisation, protection, adverse action, unfair dismissal, demotion, threats after complaint

The POSH Act, read with the duties of employers under Section 19, provides protection against retaliation and victimisation of complainants. An employer is prohibited from taking any adverse employment action against an aggrieved woman or a witness who has made a complaint or deposed before the ICC or LCC. Adverse actions that are prohibited include: (a) termination of employment; (b) demotion; (c) denial of promotion or increments; (d) transfer to an undesirable location; (e) harassment or intimidation; (f) any other detrimental treatment in employment. If the aggrieved woman or a witness is subjected to retaliatory action, the same shall be treated as a fresh instance of misconduct and the employer shall be required to take action accordingly. A separate complaint may be filed regarding the retaliatory action before the ICC or LCC. The provisions relating to interim relief under Section 12 can also be invoked to protect the aggrieved woman from retaliatory treatment during the pendency of an inquiry. Courts and tribunals have consistently held that retaliation against a POSH complainant amounts to a hostile work environment and can attract separate liability under both the POSH Act and general employment law.

=== CHUNK 16 END ===

=== CHUNK 17 START ===

Title: ICC Inquiry Report — Format and Submission

Keywords: inquiry report, Section 13, ten days, findings, recommendations, employer, District Officer, submission format

Upon completion of the inquiry, the ICC or LCC is required to submit a detailed inquiry report. The inquiry report must be submitted within ten days from the completion of the inquiry, to: (a) the employer, in the case of an inquiry by the ICC; (b) the District Officer, in the case of an inquiry by the LCC. The inquiry report shall contain: (1) a brief description of the complaint and the allegations; (2) a summary of the evidence adduced by both parties; (3) findings of fact; (4) findings on the applicability of the POSH Act to the facts; (5) a finding on whether the allegation has been proved or not proved; (6) if proved, recommendations regarding action to be taken under the service rules or monetary deduction; (7) if not proved, whether any false complaint or forgery is established and if so, recommendations regarding action against the complainant. The employer is required to act on the recommendations within sixty days of receipt of the inquiry report. The employer shall notify both parties of the action taken within sixty days. A copy of the report shall be made available to the concerned parties. Where the employer does not take action within sixty days, the aggrieved woman can file an appeal under Section 18.

=== CHUNK 17 END ===

=== CHUNK 18 START ===

Title: Annual Report and Monitoring

Keywords: annual report, District Officer, Section 21, number of complaints, pending cases, awareness training, monitoring

Section 21 of the POSH Act mandates that the ICC shall prepare an annual report and submit it to the employer and the District Officer at the end of each calendar year. The annual report must include: (a) number of complaints of sexual harassment received in the year; (b) number of complaints disposed of during the year; (c) number of cases pending for more than ninety days; (d) number of workshops or awareness programmes against sexual harassment carried out; (e) nature of action taken by the employer or District Officer. The employer, in turn, is required to include in its annual report the number of cases filed under the Act and their disposal. Similarly, the appropriate government shall compile the data from all District Officers and prepare a report on the status of implementation of the Act for submission to the Central Government. This monitoring mechanism ensures accountability at every level — from the employer to the District Officer to the State and Central Government. Failure to submit the annual report is treated as non-compliance under Section 26 and may attract penalties.

=== CHUNK 18 END ===

=== CHUNK 19 START ===

Title: Special Provisions — Domestic Workers

Keywords: domestic worker, household, employer at home, LCC, complaint by domestic worker, unorganised sector

The POSH Act specifically extends protection to domestic workers employed in households. Under Section 2(a), an

'aggrieved woman' includes a domestic worker. Under Section 2(o), a 'workplace' includes a dwelling place or a house. This means domestic workers can file complaints under the POSH Act even though they work in private homes. Since domestic employers typically employ fewer than 10 people, they are not required to constitute an ICC. Complaints by domestic workers must be filed before the Local Complaints Committee (LCC) of the district. The LCC has the same powers as the ICC to conduct an inquiry. The employer (i.e., the person in whose household the domestic worker is employed) is also covered under the employer obligations of the Act. The appropriate government is empowered to specify additional measures for the protection of domestic workers. Courts have recognised the vulnerability of domestic workers to sexual harassment given the isolated nature of their workplace, and have directed employers and LCCs to be especially vigilant in such cases.

=== CHUNK 19 END ===

=== CHUNK 20 START ===

Title: Key Case Laws under POSH Act

Keywords: case law, Vishaka, Apparel Export, High Court, Supreme Court, ICC obligations, employer liability, judicial interpretation

Key judicial decisions shaping the POSH Act framework: (1) *Vishaka and Others v. State of Rajasthan* (1997) 6 SCC 241 — The Supreme Court of India laid down mandatory guidelines for employers to prevent, prohibit, and redress sexual harassment at the workplace. These guidelines became the legislative basis for the POSH Act 2013. (2) *Apparel Export Promotion Council v. A.K. Chopra* (1999) 1 SCC 759 — The Supreme Court held that sexual harassment need not involve physical contact and that any unwelcome sexual act short of molestation is actionable. (3) *Medha Kotwal Lele v. Union of India* (2013) 1 SCC 311 — The Supreme Court directed all states and union territories to strictly implement the Vishaka guidelines and mandated the setting up of complaints committees in all workplaces. (4) High Court decisions have consistently held that: (a) the ICC has a duty to follow principles of natural justice; (b) the employer cannot be merely a rubber stamp for ICC recommendations; (c) the definition of 'workplace' is to be interpreted broadly to include off-site locations and events; (d) the three-month limitation for filing complaints can be extended for good cause. (5) Courts have also held that even a single serious incident of sexual harassment is sufficient to establish a hostile work environment.

=== CHUNK 20 END ===